

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/09/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00793
CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH
HEARING ON SUMMARY MOTION BY WALNUT CREEK PRESBYTERIAN CHURCH
FILED BY:

TENTATIVE RULING:

Motion **continued** by the court to March 2, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY:

TENTATIVE RULING:

See LINE 4.

3. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO ENFORCE SETTLEMENT AGREEMENT
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

See LINE 4.

4. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

The Court continues the hearing on the cross-motions to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 to March 2, 2026 at 9:00 a.m. No further papers are to be filed on these motions. The Court continues all related Motions to Seal to the same date.

5. 9:00 AM CASE NUMBER: C23-00323
CASE NAME: BOWLES & VERNA LLP VS. JACK ELDER
*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT
FILED BY: BOWLES & VERNA LLP
TENTATIVE RULING:

Plaintiff Bowles & Verna LLP ("Plaintiff") filed a Motion to Enforce Settlement on October 2, 2025 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on February 9, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 13, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Jack Elder ("Defendant") in the amount of \$30,000.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of William T. Nagle filed October 2, 2025 ("Supporting Declaration"), ¶12 and **Exhibit A** (Settlement Agreement) thereto. Upon such payment, the matter would be dismissed with prejudice. Settlement Agreement, ¶12, Supporting Declaration, **Exhibit A**. The agreement included provisions for certain late payment penalties and also contained another payment option. See *id.*

Analysis

Defendant was duly served with the motion. The motion is unopposed.

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶19, Supporting Declaration, **Exhibit A**.